HILCHOT SHABBAT

Nolad, Stirring & Pouring Hot Water into Cold: Hilchot Shabbat

Given Thursday 19 March 2026 · Siman 318, Seifim 11-19

Siman: 318 (Bishul — Cooking on Shabbat) **Seifim:** 17, 18, 19, 11, 12 **Topics:** Melting Congealed Solids (Nolad), Stirring Pots on the Fire (Hagasah), Adding Spices to Roasted Meat, Mixing Hot & Cold Water

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Recap: What We've Covered in Siman 318

- **Seifim 1–2:** Ma'aseh Shabbat; cooking for a choleh
- **Seif 3:** Sun, toldot hachamah; microwave; dud shemesh
- **Seif 4:** Major machlokot — ma'achal Ben Drosai, bishul achar bishul b'lach, kli sheni, irui kli rishon, kalei habishul, kli shlishi
- **Seif 5:** Bishul achar afiyah — toast, coffee, tea
- **Seifim 6–10, 13–15:** Yad soledet bo defined, stacking pots, food on an urn, salt, irui kli rishon, placing near fire, davar gush

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Seif י"ז (Tet Zayin): Melting Congealed Solids — Nolad

Background: Why Can't You Crush Snow on Shabbat?

The Gemara states clearly:

אין מרסקין לא את השלג ולא את הברד

- Forbidden to crush snow or hail with your hands
- But: אבל נותנו לתוך הכוס ואינו חושש — you CAN put a piece of snow/ice into a cup of water and let it melt on its own

Think of this as: ice cubes. You cannot crush an ice cube with your hand. But you can drop it into your drink.

Three Reasons in the Rishonim Why Crushing Snow Is Forbidden

All agree it's an issur derabanan. The question is: which rabbinic prohibition?

1. Rashi — Makeh B'Patish / Molid / Tikkun Mana

- You're creating something new — before there was snow, now you've created water
- Similar to makeh b'patish (final hammer blow) on a rabbinic level
- Putting in a cup of water = gets mixed in immediately → doesn't look like creating something new → permitted

2. Many Rishonim (seemingly the Rambam too) — Dash (Threshing)

- Dash = extracting liquid from something in an outer casing
- Crushing snow isn't technically dash — there's no outer casing
- But it's **similar** (domeh) — you may come to squeeze fruit (grapes etc.) where you ARE extracting from an outer layer
- Chachamim forbade crushing snow as a gezeirah
- Putting in a cup = results aren't clearly visible → permitted

3. Sefer HaTerumah (Rabbeinu Baruch MiMagenza) — Nolad (Muktzeh)

- On a rabbinic level, something NEW is being created
- It's a kind of muktzeh — a new entity comes into existence
- Chachamim forbade it — but not when it automatically mixes into something else

The Critical Practical Difference Between the Opinions

According to Rashi and the Dash opinion:

- The problem is the **active action** — crushing, squeezing
- If ice melts **by itself** on the table → no problem at all
- You haven't done any action similar to a melacha

According to Rabbeinu Baruch (Nolad):

- The problem is the **new substance being created** — solid becoming liquid
- Even if it happens by itself → still a problem!
- Because something new (a visible liquid) is being formed

Consequence for Ashkenazim (who are machmir like Rabbeinu Baruch):

- Cannot leave ice cubes out on the table to melt on their own
- CAN put ice cubes into a drink (the nolad mixes in immediately → no visible new entity)
- CAN make ice cubes on Shabbat (liquid → solid is NOT the same issue — nolad is specifically solid → liquid)

For Sefardim (who follow the Shulchan Aruch / first two opinions):

- CAN leave ice cubes out to melt on their own — no problem
- The only prohibition is actively crushing with your hands

Can You Crush Ice in Your Mouth?

- **Yes** — permitted for everyone
- In your mouth it's not visible — the results go straight in
- Same logic as putting ice in a cup — the new liquid isn't a visible separate entity

The Shulchan Aruch's Ruling — The Pashtida/Inpanada

מותר ליתן אינפנאדה כנגד האש במקום שיד סולדת בו ואף על פי שהשומן שבה שנקרש חוזר ונימוח

- A pashtida = pastry with meat inside, very oily food
- You may place it near the fire where it reaches yad soledet bo

- Even though the congealed oil melts and becomes a layer of liquid → permitted
- Reason: you haven't actively done anything — the melting happens mi'meila (by itself)
- **The Shulchan Aruch clearly does NOT follow Rabbeinu Baruch's nolad opinion**

The Rema's Addition

וכל שכן קדרה שיש בו רוטב שנקרש

- All the more so: a pot with congealed sauce/gravy → when the fat melts and mixes back into the food → permitted
- Because it mixes in immediately (even Rabbeinu Baruch would agree when it mixes in)

But: ויש מחמירין — some are strict (= Rabbeinu Baruch / nolad)

ונהגו להחמיר... מיהו במקום צורך יש לסמוך על סברא ראשונה

- Ashkenazi minhag: be strict in the first instance
- But if there's a **need** → may rely on the main (lenient) opinion

The Mishnah Berurah's Clarification

- Even for the machmirim — the problem is only with a **substantial** amount of oil/liquid
- If just a small amount of fat comes out (as with any good piece of meat on a hotplate) → fine for everyone
- The issue is only when so much oil melts that it forms its own **visible, recognizable layer** on top

Mishnah Berurah's Additional Leniency for Ashkenazim

- Putting the pashtida on the hotplate **before** the hotplate turns on (via timer) → permitted
- Similar to Chacham Ovadia's ruling about reheating liquids via gramma
- Since you didn't do the action — the heat came on by itself afterwards

Two Important Practical Takeaways for Sefardim

1. **No issue with melting congealed substances mi'meila** — leave ice cubes out, reheat oily foods freely
2. **Congealed liquid = currently a solid** — therefore even though it will become liquid when heated, bishul achar bishul b'lach does NOT apply at the moment of placement. You can take congealed soup/sauce from the fridge and reheat it because right now it's a solid.

Asymmetry: Solid → Liquid vs. Liquid → Solid

Question from the shiur: If you can't melt ice (solid → liquid), can you freeze water (liquid → solid)?

- **Making ice cubes on Shabbat:** Permitted — even for Ashkenazim
- Rabbeinu Baruch's nolad concern is specifically **solid → liquid** (a new flowing substance is "born")
- Liquid → solid = just a formation/hardening — not the same kind of "new creation"
- Vast majority of Ashkenazi poskim permit making ice cubes
- For Sefardim: certainly permitted (we don't hold of nolad at all in this context)

Seif י"ח (Yud Chet): Stirring Pots on the Fire — הגסה (Hagasah)

The Gemara's Statement

The Gemara in Beitzah says multiple people can be chayav for one act of bishul:

- One person puts the pot on → chayav (because of libun — tempering a new pot on the fire)
- One person puts food in → chayav
- One person stirs → **chayav mishum bishul**

Stirring = an issur de'oraita of bishul (when the food is not fully cooked)

Why Is Stirring Bishul?

- By stirring food on the fire, you are **memaher bishulo** — speeding up the cooking process
- This constitutes an act of bishul

Practical Note About Urns

- From the same logic: ensure your urn is fully boiled **before** Shabbat
- If you open the urn tap when the water hasn't fully boiled → you're causing mixing/movement inside → speeding up the cooking process
- Not d'oraita (it's grama — indirect) — but still problematic

The Major Machloket: Stirring FULLY COOKED Food

Most Rishonim (Rashba, Ramban, Ran):

- Stirring is only an issue when food is NOT fully cooked
- Once fully cooked (nitbashel kol tzorko) → אין בישול אחר בישול → stirring is fine

The Kol Bo (and possibly the Rambam):

- Even fully cooked food → there is an issue with stirring on the fire

The Rambam's language (Perek 3, Halacha 11):

אסור להכניס מגרפה לקדרה בשבת והיא על האש... מפני שמגיס בה וזה מצרכי בישול הוא

- The Rambam doesn't differentiate between fully cooked and not
- The Kol Bo learns from this: stirring is always forbidden on the fire

The Mishnah Berurah's Difficulty

ולא ידעתי הדבר — "I don't understand this"

- We have אין בישול אחר בישול — if fully cooked, what's the problem?
- If cholent becomes crispier overnight on the hotplate (מצטמק ויפה לו) → that's mutar
- So why would stirring be different?

Three Reasons Given by Acharonim Why Stirring Fully Cooked Food Is Problematic

1. Igros Moshe (Rav Moshe Feinstein) — Unexposed Portions

- The dish as a whole = nitbashel kol tzorko (fully cooked, fully edible)
- But within it, there are always bits not fully cooked

- By stirring → you expose those bits to direct heat → they become fully cooked
- That's a new act of bishul on those specific portions

2. Chazon Ish — New Dimension

- True: אין בישול אחר בישול — reheating and making crispier is fine
- But stirring **on the fire** adds a qualitatively new dimension to the food
- It's not just "more heat" — it's a different kind of transformation
- (May need to ask a chef to fully explain this)

3. Gezeirah (Derabanan Reason)

- Don't stir fully cooked food → so you won't come to stir food that's NOT fully cooked
- Since stirring not-fully-cooked food = clear issur de'oraita → Chachamim made a fence

Stirring vs. Taking Out with a Ladle

The Ran deduces from the Gemara a distinction:

Action	Status	Reasoning
Stirring (circular motion on the fire)	**De'oraita** (if not fully cooked)	Memaher bishulo — speeding cooking
Taking out with a ladle (half-circular motion)	**Derabanan**	Similar to stirring but less intense

The Shulchan Aruch's Ruling

האלפס והקדרה שהעבירן רותחין מעל גבי האש

Even if you took the pot off the fire (kli rishon, still yad soledet bo):

If NOT fully cooked:

- Cannot stir → issur de'oraita (whether on or off the fire, as long as yad soledet bo)
- Cannot take out with a ladle → issur derabanan (similar to stirring)

If fully cooked:

- Can take out with a ladle — whether on or off the fire (Beis Yosef clarifies: even on the fire)
- Stirring on the fire → the Shulchan Aruch doesn't explicitly rule, but poskim are machmir

The Rema's Chumra

ולכתחילה יש להיזהר אף בקדירה בכל עניין

- Be careful even off the fire, even just to take out
- **The Mishnah Berurah says:** No one actually takes this on. It's too strict.
- But: one should be machmir not to **stir** when fully cooked (on the fire)
- To **take out** → everyone is lenient

Practical Summary: Stirring & Taking Out

For Sefardim (Chacham Ovadia / Beis Yosef):

Scenario	Stir?	Take out with ladle?
Not fully cooked, on fire	**Asur de'oraita**	**Asur derabanan**
Not fully cooked, off fire (yad soledet bo)	**Asur de'oraita**	**Asur derabanan**
Fully cooked, on fire	**Should not** (machmir — Kol Bo)	**Mutar**
Fully cooked, off fire (yad soledet bo)	**Mutar**	**Mutar**
Fully cooked, off fire, cooled below yad soledet bo	**Mutar**	**Mutar**

For Ashkenazim (Mishnah Berurah):

Scenario	Stir?	Take out with ladle?
Not fully cooked (on or off fire, yad soledet bo)	**Asur de'oraita**	**Asur derabanan**
Fully cooked, on fire	**Should not**	**Mutar**
Fully cooked, off fire (still yad soledet bo)	**Should not** (machmir)	**Mutar**
Fully cooked, off fire, cooled below yad soledet bo	**Mutar**	**Mutar**

Rav Moshe Feinstein's Leniency for Hotplates

- Rav Moshe suggests: the entire issue of stirring fully cooked food may only apply on an **actual fire/flame**
- A hotplate (plata) may not have the same intensity → the "new dimension" doesn't apply
- Rabbi Kada noted: Chacham Ovadia doesn't discuss this
- Practical recommendation: still don't stir on the hotplate even if fully cooked — to be safe

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Seif י"ט (Yud Tet): Adding Spices to Roasting Meat

אסור לטוח שמן ושום על הצלי בעודו כנגד המדורה

- Cannot put oil or garlic on roasted meat while it's still near the fire
- Even if the meat was **fully roasted** before Shabbat (אפילו נצלה מבעוד יום)
- Reason: the garlic and oil themselves will become cooked
- Straightforward halacha — the meat may be done, but the additions are not

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Seifim י״א–י״ב (Yud Alef — Yud Bet): Mixing Hot & Cold Water

Background

- These seifim are extremely complex in the Rishonim (8+ opinions, 3 ways to understand the Rambam)
- Rabbi Kada noted: spent approximately two weeks on this in kollel
- Not highly practical in everyday life — covering the main takeaway

Seif Yud Alef: The Ambati (Large Bathtub)

The Rambam's words (quoted by the Shulchan Aruch):

אמבטי שהיא מלאה מים חמין אין נותנים לתוכה מים צונן שהרי מחממין הרבה

- A large bathtub full of very hot water → cannot add cold water
- Because: the hot water is so abundant that the cold water will automatically be heated to yad soledet bo

אבל נותן הוא ממים חמין שבזה האמבטי לתוך אמבטי אחר של צונן

- But: you CAN pour **from** the hot bath **into** another bath of cold water
- Because: you're only pouring a small amount of hot into a large amount of cold → the result becomes lukewarm, not yad soledet bo

The Rema adds (Tosfot/Rosh):

אף על פי שהוא כלי שני

- Even though the ambati is a kli sheni — because it's such a huge volume and so hot, it has cooking ability
- The Rambam may not hold of this chiddush (unclear if he considers it kli rishon or kli sheni — major debate)

Seif Yud Bet: Pouring from a Vessel After Removing Hot Water

מיחם שפינה ממנו מים חמים מותר ליתן לתוכו מים צונן מרובים כדי להפשירן

- A vessel where you removed the hot water and some hot water remains → you CAN add a large amount of cold water to make it lukewarm

ומותר לצוק מים חמים לתוך מים צונן או צונן לתוך חמים והוא שלא בכלי ראשון

- You may mix hot into cold or cold into hot — **not in a kli rishon** (because a kli rishon can heat it too much)

ומים מרובים כל כך שאי אפשר שיתבשלו... אפילו בכלי ראשון שרי אלא כשלא על האש

- If the cold water is so abundant that it **cannot** reach yad soledet bo → permitted even in a kli rishon (off the fire)

Why Doesn't Irui Apply When Mixing Hot & Cold Liquids?

- We learned irui kli rishon is forbidden — so why can you pour hot water into cold?
- Answer: with **liquids**, the particles mix immediately

- The cold water absorbs and neutralizes the heat instantly
- As long as the **resulting mixture** won't reach yad soledet bo → permitted

Main Practical Takeaway

- You may pour cold water into hot water (or vice versa) as long as the **result** won't reach yad soledet bo
- Not in a kli rishon that's on the fire — never put anything on the fire
- In a kli rishon off the fire → only if the cold water is so abundant it can't reach yad soledet bo
- In a kli sheni → permitted freely (כלי שני אינו מבשל)

Completion of Melechet Bishul — Siman 318

This shiur concludes the study of Siman 318 — Melechet Bishul. The siman contains 19 seifim covering:

- The consequences of cooking on Shabbat (ma'aseh Shabbat)
- Sun cooking, toldot hachamah, and practical applications
- Bishul achar bishul — solids, liquids, and the Rema's position
- Kli rishon, kli sheni, kli shlishi — the Ashkenazi/Sefardi divide
- Kalei habishul and irui kli rishon
- Bishul achar afiyah — toast, coffee, tea
- Yad soledet bo — the 45°C–71°C range
- Placing food on urns, near fire, stacking pots
- Salt, meat, and specific exceptions
- Nolad — melting congealed substances
- Hagasah — stirring pots on the fire
- Mixing hot and cold water

Key Practical Summary for This Shiur

1. **Melting congealed food (Sefardim):** No issue — congealed sauce from the fridge can be reheated freely (currently a solid, so bishul achar bishul b'lach doesn't apply)
2. **Melting congealed food (Ashkenazim):** If a substantial layer of liquid forms → machmir in the first instance. If small amount → fine. Putting on hotplate before it turns on → always fine.
3. **Ice cubes:** Sefardim can leave out to melt. Ashkenazim should put in drinks, not leave to melt independently. Both can make ice cubes on Shabbat.
4. **Stirring:** Never stir a pot on the fire on Shabbat, even if fully cooked. Take the pot off first (Sefardim: then you can stir if fully cooked).
5. **Taking out with a ladle:** If fully cooked → permitted even on the fire (Sefardim). Ashkenazim agree for taking out but not stirring.
6. **Don't add raw spices/garlic to meat near the fire** — even if the meat is fully cooked, the additions will cook.

7. **Mixing hot & cold water:** Permitted as long as the result can't reach yad soledet bo. Not in a kli rishon on the fire.

Chodesh Tov — Rosh Chodesh Nisan Chag Pesach Kasher v'Sameach

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